

26STCV14005 26STCV14005

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-10

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Case Number: 26STCV14005 Hearing Date: August 10, 2026 Dept: 514

Clark v.

Amgen Inc.

26STCV14005

Defendant's Motion

to Bifurcate, or in the alternative, Sequence Discovery

Tentative

Ruling

The motion is denied.

Background

On May

1, 2026, Denyse Clark, individually and on behalf of all other Aggrieved Employees ("Plaintiff"), filed a complaint against Amgen Inc. ("Defendant") and Does 1 through 50, asserting one cause of action under the Private Attorney's General Act, Labor Code section 2698, et seq.

On June

23, 2026, Defendant filed an answer.

On June

25, 2026, Defendant filed this motion to bifurcate trial or sequence discovery. Plaintiff filed an opposition on July 28, and Defendant filed a reply on July 31.

No trial date has been set.

Legal Standard

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action ... or of any separate issue or of any number of causes of action or issues...” (Code Civ. Proc., § 1048 (b).)

The court has general discretion to order certain issues tried before others “when the convenience of witnesses, the ends of justice or the economy and efficiency of handling the litigation would be promoted thereby.” (Code Civ. Proc., § 598.)

“[O]n motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice.” (Code Civ. Proc., § 2019.020, subd. (b).)

Discussion

Defendant seeks to bifurcate the issue of Plaintiff’s standing to pursue her PAGA claim against Defendant, or in the alternative, to have discovery sequenced.

Bifurcation

Defendant contends Plaintiff is not an “aggrieved employee” and therefore cannot bring a representative action against Defendant under PAGA. Defendant seeks a separate trial on this issue.

The motion is extraordinarily premature. This action was filed only recently, and no trial date has been set. Perhaps Defendant is correct and Plaintiff is not an aggrieved employee. If so, perhaps Defendant will be able to prevail on a motion for summary judgment or summary adjudication. Or perhaps not. At this stage of the proceedings, Defendant has not shown a sufficient basis for bifurcation. The Court, in its discretion, denies Defendant’s

request for a bifurcation order.

Sequencing of Discovery

Defendant requests an order sequencing discovery so that this standing issue may be explored first, before other discovery. Defendant argues that allowing Plaintiff to conduct discovery on her representative PAGA claims would be costly and burdensome.

The general rule is that a party can conduct discovery upon filing a lawsuit. As our Supreme Court has explained:

“California law has long made clear that to require a party to supply proof of any claims or defenses as a condition of discovery in support of those claims or defenses is to place the cart before the horse. The Legislature was aware that establishing a broad right to discovery might permit parties lacking any valid cause of action to engage in fishing expeditions, to a defendant’s inevitable annoyance. It granted such a right anyway, comfortable in the conclusion that mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation.”

(Williams v. Superior Court
(2017) 3 Cal.5th 531, 551 [citations omitted].)

The Court understands that Defendant contends that this is a threshold, potentially dispositive issue. But that contention alone is not a sufficient basis to sequence discovery; Defendant presents no evidence of the scope of discovery that Plaintiff has propounded (or will propound) or the expense and burden associated with responding to such discovery. Moreover, there are commonly potentially dispositive issues in civil litigation, and in the vast majority of cases there is no order for sequencing of discovery.

There are exceptions of course. The Court plainly has the power to make the order Defendant requests. But Defendant has not made a sufficient showing on this record for the Court to take the unusual step of entering a sequencing order. The Court, in its discretion, denies the request for a sequencing order.

Conclusion

The Court DENIES the motion of Defendant Amgen Inc. for bifurcation, or in the alternative, an order for the sequencing of discovery.

Moving
party to provide notice.